

Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000

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Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000

ANDHRA PRADESH

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Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000

Rule

ANDHRA-PRADESH-PANCHAYAT-RAJ-PREPARATION-AND-PUBLICATION-OF-ELECTORAL-ROLLS-RULES-2000
of 2000

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Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000

Published vide Notification No. G.O.Ms.No. 254, dated 4.8.2000

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G.O.Ms.No. 254. - In exercise of the powers conferred by clause (i) sub-section (2) of Section 268, read with Section 11, sub-section (2) of Section 151 and sub-section (2) of Section 179, of the Andhra Pradesh Panchayat Raj Act, 1994 (Act No.13 of 1994

), and in supersession of the rules issued in G.O.Ms.No.879, PR, RD & R (Elecs.I) Department, dated 3.12.1994,

G.O.Ms.No. 898, PR, RD & R (Elecs.I) Department, dated 10.12.1994, G.O.Ms.No.913, PR, RD & R (Elecs.I) Department, dated 21.12.1994 and G.O.Ms.No.923, PR, RD & R (Elecs.I) Department, dated 28.12.1994, the Governor of Andhra Pradesh, hereby, makes the following Rules relating to preparation and publication of electoral rolls under the said Act, for a Gram Panchayat, Mandal Praja Parishad and Zilla Praja Parishad, or any portion thereof.

1.

Short Title.

- These rules may be called the "Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000".

2.

Preparation of Gram Panchayat electoral roll.

(1)

The electoral roll of a Gram Panchayat, hereinafter referred to as "the electoral roll", shall be such part of the current electoral roll of the Andhra Pradesh Legislative Assembly Constituency, prepared and published under the Representation of the People Act, 1950 (Central Act 43 of 1950), as relates to the village, which shall be prepared by the District Panchayat Officer, taking into account the various amendments issued to the said electoral roll of the Assembly Constituency, from time to time, as they relate to the village, up to the date of election notification.

(2)

There shall be a separate electoral roll for each Gram Panchayat.

3.

Electoral roll for election to the office of Sarpanch.

- For the purpose of election of Member and Sarpanch of Gram Panchayat, the roll prepared under rule 2 shall be the electoral roll.

4.

Form and language of the roll.

(1)

The roll shall be prepared in the format specified by the State Election Commission, by order.

(2)

The roll shall be prepared in such language or languages in which the roll of the Andhra Pradesh Legislative Assembly Constituency, within which the Gram Panchayat is situated, is prepared.

5.

Publication of copies of rolls.

(1)

As soon as the roll is prepared in accordance with these rules, the District Panchayat Officer shall, make arrangements to print or cyclostyle or write in manuscript as many copies of the roll as may be directed by the State Election Commission, from time to time. He shall publish the same for inspection by general public:

(a)

on the notice board kept in the office of the District Panchayat Officer.

(b)

on the notice board kept in the office of the Gram Panchayat; and

(c)

at three conspicuous places in the concerned village.

(2)

The electoral roll published under sub-rule (1) shall indicate the ward division made under sub-section (4) of Section 11 or, as the case may be, under Section 12, of the Andhra Pradesh Panchayat Raj Act, 1994 (Act 13 of 1994

), hereinafter in these rules referred to as "the Act".

(3)

Upon such publication under this rule, the roll shall be the electoral roll of the Gram Panchayat and shall remain in force till a fresh electoral roll is prepared and published.

6.

Procedure for lodging claims and objections.

- All omissions of names in any part of the roll or objections to any entry in the roll, at any point of time after its publication under rule 5, shall be settled only after a suitable amendment to the relevant entry in the electoral roll of the Legislative Assembly Constituency, based on which the Gram Panchayat roll was prepared. Anybody wishing to prefer a claim for inclusion or deletion of any name in the roll or any objection in respect of any entry in the roll so published, shall submit a proper claim or objection under the provisions of the Registration of Electors Rules, 1960 made under the representation of the People Act, 1950 (Central Act 43 of 1950), to the Electoral Registration Officer of the concerned Legislative Assembly Constituency. Subject to the provisions of Section 11 of the Act, and based on the orders of the Electoral Registration Officer of the Assembly Constituency on such claims and objections, the District Panchayat Officer shall carry out consequential amendments in the Gram Panchayat electoral roll. In case of any clerical or printing error or both, or when the entries deviate from the particulars of the Assembly Electoral Roll, the District Panchayat Officer may cause such errors rectified, so as to bring it in conformity with the particulars of the Assembly Electoral roll concerned. However, the District Panchayat Officer shall not resort to suo motu revision of the rolls by way of deletions or additions or modifications.

7.

Electoral roll of a Mandal Praja Parishad.

(1)

For the purposes of preparation and publication of electoral roll for the election to the office of members of Mandal Praja Parishad the provisions of Sections 11 and 12 of the Andhra Pradesh Panchayat Raj Act, 1994 shall apply mutatis mutandis.

(2)

The Electoral roll for the Gram Panchayat prepared and published under rule 2 shall be arranged Territorial Constituency-wise of the Mandal Praja Parishad by the Mandal Parishad Development Officer and it shall be divided into convenient parts which shall be numbered conveniently. The part of the electoral roll shall be arranged Gram Panchayat-wise in alphabetical order for each Mandal Parishad Territorial Constituency for the purpose of conducting elections of Mandal Parishad Territorial Constituency.

(3)

A copy of such electoral roll in respect of each Territorial Constituency of Mandal Praja Parishad shall be kept open for inspection in the office of the Mandal Praja Parishad concerned.

8.

Electoral roll of a Zilla Praja Parishad.

(1)

For the purposes of preparation and publication of electoral roll for the election of member of Zilla Praja Parishad, the provisions of Sections 11 and 12 shall apply mutatis mutandis.

(2)

The electoral roll for the Gram Panchayat prepared and published under rule 2 shall be arranged for each Mandal which is a Territorial Constituency of the Zilla Praja Parishad by the Chief Executive Officer, Zilla Praja Parishad concerned, and it shall be divided into convenient parts which shall be numbered conveniently. The part of the electoral roll shall be arranged Gram Panchayat-wise in alphabetical order for each Zilla Parishad Territorial Constituency, for the purpose of conducting elections of Zilla Parishad Territorial Constituency.

(3)

A copy of such electoral roll in respect of each Territorial Constituency of Zilla Praja Parishad shall be kept open for inspection in the office of the Zilla Praja Parishad concerned.

9.

Transitional Provision.

- Notwithstanding anything in these rules, the electoral rolls of Gram Panchayats prepared and finally published, with reference to 1st January, 2000 as the qualifying date, in pursuance of Notification No.738/SEC-B1/1999-2000, dated 7th January, 2000 of the State Election Commission, shall continue to be in force, until fresh electoral rolls are prepared and published, subject to the condition that any additions or deletions made by the Electoral Registration Officer under the Representation of the People Act, 1950 (Central Act 43 of 1950) in the electoral roll of the Legislative Assembly Constituency, as relates to the concerned Gram Panchayat, between the date of the notification of the State Election Commission referred to above, and the date of Election notification, for any election held under this Act shall be added

or deleted, as the case may be, in the electoral rolls already prepared as above. Any additions shall, however, be added to the last ward of the Gram Panchayat concerned.

Form-I

Notice of Publication of Electoral Roll

(See rule 5)

Notice is, hereby, given that the electoral roll of the Gram Panchayat in Mandal has been prepared in accordance with the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000 by adopting the existing entries in the relevant part of the Electoral Roll for Legislative Assembly Constituency prepared under the Representation of the People Act, 1950. The same is kept open for inspection at my office and at the office of the Gram Panchayat.

Any person who wishes to lodge any claim for including his/her name in the roll or any objection to the inclusion of a name or any objection to the particulars of any entry in the said roll, shall first get such claim or objection settled with reference to the corresponding entry in the Electoral Roll of the Assembly Constituencies by lodging suitable claim or objection under the provisions of the Representation of the People Act, 1950 (Central Act 43 of 1950) and the Registration of Electors Rules, 1960 made thereunder, before the Electoral Registration Officer of the said Assembly Constituency.

All orders of inclusion, deletion or corrections issued on the basis of these claims and objections by the said Electoral Registration Officer till the date of the notification issued by the State Election Commissioner under sub-rule (2) of rule 4 of the Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 1994, will be duly incorporated in the electoral Roll of the Gram Panchayat.

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